

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 23, 2026 TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 6	17CV314877	Econergy, Inc. v. Jaspal Singh Deol	Order to Show Cause Parties to appear.
SPECIAL SET LINE1	25PR199104	Living Trust of Gilbert and Cecilia Marosi dated 3/03/1983, as amended	Hearing: Petition Advance Case Status Report: No notice of hearing or proof service of notice of hearing was filed with the petition, which was originally set for 6/3/26 in D7. (Prob. Code § 17203.) The 6/3/26 hearing was vacated and reset to 6/23/26 in D13. On 5/8/2026, the Court sent notice of the rescheduling and reassignment of the hearing to Petitioner directly and counsel for Richard Marosi. However, this is not § 17203 notice.

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Calendar Line 1

Case Name: *Enrique Sigala et al v. Alonso Lujano Estrada et al.*

Case No.: 25CV463274

Before the Court is Plaintiff Enrique Sigala (“Plaintiff Sigala”) and Durango Paving and Grading Inc. (“Corporate Plaintiff”), prejudgment application for writ of possession for delivery of a breaker attachment, believed to be in the possession of Defendant Alonso Lujano Estrada (“Defendant Estrada”), Cal-State Paving Inc., and Lujano Builders Inc. (“Corporate Defendants”). The Court GRANTS Plaintiff Sigala’s application for writ of possession for the following reasons.

Pursuant to California Code of Civil Procedure section 512.010, Plaintiff Sigala provided the following information along with his application (in order as it appears in the statute):

- (1) A written document of Corporate Plaintiff’s agreement with Wells Fargo for the financing of the Bobcat T770 and Breaker NB170 and a statement that the Breaker is Corporate Plaintiff’s property as it was paid in full by Plaintiff Sigala acting as a representative for corporate use. (Sigala Decl. ¶ 12, Ex 6.)
- (2) A statement by Plaintiff Sigala alleging that despite multiple demands for the return of the Breaker, Defendant Estrada refuses to return the Breaker and is still in possession. (Sigala Decl. ¶13.)
- (3) A statement by Plaintiff Sigala of the approximate values and serial numbers of the Bobcat and Breaker attachment. (Sigala Decl. ¶ 10, 12.)
- (4) Plaintiff Sigala’s statement that the last known use of the Breaker by Corporate Plaintiff, Plaintiff Sigala, and witness Lorena, was in or around September 2023, at a job site in Corte Madera. After that, Plaintiff alleges that Defendants Estrada and Steve took the Breaker to Corporate Defendant’s address and to the best of his knowledge the property remains there. (Sigala Decl. ¶ 11, Ex 4.)
- (5) A statement by Plaintiff Sigala, that to his knowledge, the property has not been seized for tax assessment or fine purposes. (Sigala Decl. ¶ 14-15.)

Defendant Estrada opposes Plaintiff Sigala’s application for prejudgment writ of possession, stating that Plaintiff Sigala failed to satisfy his burden to prove the *probable validity* of his claim to possession of the Breaker. The main dispute is over “a showing of the basis of the plaintiff’s claim and that the plaintiff is entitled to possession of the property claimed.” (Code Civ. Proc., § 512.010.) Probable validity is defined by California Civil Procedure Section 511.090, requiring the court to make a determination of the probable outcome of the case based on a claim “where it is more likely than not that the plaintiff will obtain a judgement against the defendant on that claim.” (Code Civ. Proc., § 511.090) In *Santa Clara Valley Water Dist. v. Eisenberg* (2025) 117 Cal.App.5th 714, the court took into consideration the materials that accompanied the plaintiff’s writ of possession application: a declaration by a senior management analyst in the plaintiff’s security office, that had video footage of the defendant carrying out the printed reports (which was the property of interest),